

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served April 22, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

SCHEDULING ORDER

On April 22, 2026, the parties filed a joint status report and proposed schedule as an exhibit to Complainant's Renewed Motion for Leave to Accept Late-Filed Corrected Joint Status Report, to Deem the April 14, 2026, CADRS Preliminary Conference Satisfied, and for Related Relief. The parties state that they have conducted a conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) and exchanged their initial disclosures.

In the answer, Respondent requested an oral hearing. In the second amended complaint, Complainant stated that it does not request an oral hearing. Pursuant to Commission Rules 62(a)(5) and 62(b)(3), the "presiding officer will determine whether an oral hearing is necessary." 46 C.F.R. § 502.62(a)(5), (b)(3). At this point in the proceeding, it is not clear that either a pre-hearing conference or an oral hearing is necessary. Accordingly, Respondent's request for an oral hearing is **DENIED WITHOUT PREJUDICE**.

The discovery schedule proposed by the parties is reasonable and substantially adopted with an adjustment to the counterclaim response deadline to ensure that the date does not occur prior to entry of this order and to ensure that no deadline falls on a Saturday. Pursuant to 46 C.F.R. § 502.141(g), discovery must be completed within 150 days of the service of the answer on March 27, 2026, that is no later than August 24, 2026. Because the filing of the answer was delayed by motions to dismiss requiring two amendments of the complaint, I find the schedule reasonable even though it will require extension of the initial decision deadline currently scheduled for August 31, 2026. (Dkt. 19.)

The parties are hereby **ORDERED** to follow this schedule:

Completed	Service of initial disclosures
April 22, 2026	Complainant's Response to Counterclaim, Including any Motion Directed to Counterclaim

April 22, 2026	Service of Written Discovery Requests
June 22, 2026	Substantial Completion of Document and ESI Production
June 25, 2026	Fact Depositions May Begin
July 3, 2026	Complainant's Expert Disclosures and Reports, if any
July 17, 2026	Last Day to Serve Supplemental Written Discovery Requests
August 3, 2026	Respondent's Rebuttal Expert Disclosures and Reports, if any
August 21, 2026	Completion of Fact and Expert Depositions
August 24, 2026	Close of all Discovery
September 23, 2026	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
October 23, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
November 9, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including but not limited to the requirements for briefs, appendices, and confidential information.

Any filing submitted without page numbers, including exhibits, may be rejected. Parties may be required to refile any documents that do not comply with the requirements in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties

are directed to email an electronic copy of required documents in a word-processing format to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

MARY A.
HERVEY -S

Digitally signed by MARY A.
HERVEY -S
Date: 2026.04.22 12:18:21
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Mary Apostolakos Hervey
Administrative Law Judge